



LAW.224 TORT LAW

DR SARAH GILMARTIN

s.gilmartin@lancaster.ac.uk

DEFENCES

Part 1 and 2

Week 19

Lecture 37 and Lecture
38

What is a defence?

1. A reason why liability should not attach – a total defence: e.g. Self-defence; Volenti non fit injuria; Illegality.
2. A method of denying elements of the tort – a total defence: e.g. Elements of negligence: Duty, Breach, Causation, and/or Remoteness.
3. A way to mitigate the remedy – a partial defence/no defence: e.g. Contributory negligence

J Goudkamp, *Tort Law Defences* (Hart 2016)



Examples to Consider



- C, driving carefully, collides head on with D's speeding car. D was executing an overtake at the time of the collision and was on C's side of the road. C suffers head and neck injuries as a result of the collision. C was not wearing a seatbelt.
- C and D stole some tall ladders from a front garden. The ladders did not fit onto their van so C stood on the back of the van holding the ladders in place with one hand and holding onto the van with the other. D drove round a corner sharply and C fell off the van and was injured.
- C spent the afternoon drinking with D. D suggested they take a joyride in his light aircraft. C helped D to prepare the plane. D was the pilot. Shortly after takeoff the aircraft crashed. D was killed and C was seriously injured.

Assuming all elements of negligence are met, can D raise a defence? If so, on

Defences (Non-exhaustive)

Negligence

- Contributory Negligence

Public Nuisance:

- Contributory Negligence

Defamation

- Truth
- Honest Comment
- Public Interest
- Innocent Dissemination

Private Nuisance:

- Locality (not relevant to amenity damage)
- Statutory Authority
- Natural Disaster
- Independent Contractors
- Prescription
- Contributory Negligence

General Application (all torts):

- Ex Turpi Causa – illegality defence
- Volenti Non Fit Injuria – consent defence
- Tortious elements not fulfilled

Trespass Against the Person

- Self-Defence
- Mistake as to a threat
- Prevention of a Crime
- Necessity

Rylands:

- Common Benefit
- Necessity
- Statutory Authority
- Natural Disaster
- Act or Omission of Claimant
- Act of Stranger

Complete Defence - Illegality

Ex turpi causa non oritur action – an action cannot be founded on illegal/immoral conduct **or** from a wrongful cause no action arises

“No court will lend its aid to a man who founds his cause of action upon an illegal or an immoral act.”

Holman v Johnson (1775) 98 E.R. 1120, 1121 per Lord Mansfield

3 types of case:

- Joint illegal enterprise cases;
- Unilateral illegality cases; and
- “Sanction-shifting cases”.



Joint Illegal Enterprise

C & D are engaged in an illegal activity

Pitts v Hunt [1991] 1 Q.B. 24

"Where the [claimant]'s action in truth arises directly ex turpi causa, he is likely to fail ... Where the [claimant] has suffered a genuine wrong, to which allegedly unlawful conduct is incidental, he is likely to succeed ..."

per Dillon LJ at 56 citing Bingham LJ in *Saunders v Edwards* [1987] 1 W.L.R. 1116, 1134

See this case also for a discussion of Volenti

C's knowledge that D was underage, uninsured, and intoxicated



Delaney v Pickett [2011] EWCA Civ 1532

Joyce v O'Brien [2013] EWCA Civ 546

Ashton v Turner [1981] Q.B. 137

Unilateral Illegality

C is engaged in an illegal activity

***Vellino v CC of Manchester Police* [2001] EWCA Civ 1249**

(1) The operation of the principle arises where the claimant's claim is founded upon his own criminal or immoral act.

(2) The principle is one of public policy; it is not for the benefit of the defendant.

(3) In the case of criminal conduct this has to be sufficiently serious to merit the application of the principle



***Revill v Newberry* [1996] Q.B. 567**

- C a burglar
- D shot him
- Defence of illegality failed

See this case also for a discussion of contributory negligence

Sanction-shifting

C attempts to use tort law to deflect the impact of criminal law

Gray v Thames Trains Ltd and another [2009] UKHL 33

- C convicted of manslaughter (diminished responsibility)
- C suffered with PTSD further to earlier train crash
- C claimed against D for losses associated with his conviction
- *'a claim of [this] kind undoubtedly falls foul of the ex turpi causa maxim since the claimant is asking the defendant to compensate him for the consequences of his own deliberate criminal act in killing [a person].'* per Lord Rodger [64]



Post-Gray Uncertainty?

***Allen v Houna* [2014] UKSC 47** - C illegal au pair – illegality defence failed

***Les Laboratoires Servier and another v Apotex Inc and Others* [2015] AC 430** - patents and breaches - quasi criminal acts

'The illegality defence, where it arises, arises in the public interest, irrespective of the interests or rights of the parties. It is because the public has its own interest in conduct giving rise to the illegality defence that the judge may be bound to take the point of his own motion, contrary to the ordinary principle in adversarial litigation...in general, although described as a defence, it is in reality a rule of judicial abstention. It means that rather than regulating the consequences of an illegal act (for example by restoring the parties to the status quo ante, in the same way as on the rescission of a contract) the courts withhold judicial remedies, leaving the loss to lie where it falls.' [Per Lord Sumption \[23\]](#)

'The ex turpi causa principle is concerned with claims founded on acts which are contrary to the public law of the state and engage the public interest. The paradigm case is, as I have said, a criminal act. In addition, it is concerned with a limited category of acts which, while not necessarily criminal, can conveniently be described as "quasi-criminal" because they engage the public interest in the same way'. [Per Lord Sumption \[25\]](#)

Post-Gray Clarity? *Patel v Mizra* [2016] UKSC 42

In assessing whether the public interest would be harmed in that way, it is necessary:

- a) to consider the underlying purpose of the prohibition which has been transgressed and whether that purpose will be enhanced by denial of the claim,
- b) to consider any other relevant public policy on which the denial of the claim may have an impact and
- c) to consider whether denial of the claim would be a proportionate response to the illegality, bearing in mind that punishment is a matter for the criminal courts.

Within that framework, various factors may be relevant...The public interest is best served by a principled and transparent assessment of the considerations

Further Clarity Post-Gray - *Gray* and *Patel* affirmed

***Henderson v Dorset Healthcare University NHS Foundation Trust* [2020] UKSC 43**

- C was a paranoid schizophrenic convicted of manslaughter (diminished responsibility) of her mother.
- D admitted negligence – knew of C’s health decline and should have returned her to their care – had they done so, C would not have killed her mother.
- C sought damages against D (PTSD, loss of liberty, loss of amenity, forfeiture of her mother’s estate, cost of psychotherapy, and cost of care manager/support worker).
- 3 questions for the court:
 - 1. Can *Gray* be distinguished?  No
 - 2. Should the court depart from *Gray*?  ‘the decision in *Gray* should be affirmed as being “*Patel* compliant” - it is how *Patel* “plays out in that particular type of case”. The clearly stated public policy based rules set out in *Gray* should be applied and followed in comparable cases.’ (Lord Hamblin  [2020])
 - 3. Can C recover damages for any losses claimed? No

More Clarity: *Lewis-Ranwell (Respondent) v G4S Health Services (UK) Ltd and others (Appellants)* [2026] UKSC 2

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Facts:

- ❖ The Respondent (a diagnosed schizophrenic) was arrested for burglary (08 February 2019) and released from custody the following day (09 February);
- ❖ On the same day he was bailed (09 February) he committed GBH on an elderly gentleman and was re-arrested;
- ❖ The Respondent was assessed by mental health professionals whilst in custody and was released again on bail the following morning (10 February);
- ❖ Later that day (10 February), the Respondent killed 3 elderly gentleman;
- ❖ At trial in November 2019:
 - the jury found the Respondent **not guilty** of murder by reason of insanity;
 - he was detained at Broadmoor Hospital under the Criminal Procedure (Insanity) Act 1964 with restrictions under the Mental Health Act 1983.
- ❖ The Respondent sought damages in this civil claim from the Appellants.
- ❖ The Appellants raised the defence of illegality.

More Clarity: *Lewis-Ranwell (Respondent) v G4S Health Services (UK) Ltd and others (Appellants)* [2026] UKSC 2

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Issues on Appeal:

❖ In circumstances where the claimant was charged with murder and found not guilty by reason of insanity:

1. Is the defence of illegality engaged by his civil claim in negligence?
2. If so, does it bar the claimant's claim in whole or in part?

Some Key Considerations:

- ❖ The question is whether conduct is unlawful in the sense required for the application of the principle.
- ❖ The actions of the claimant do not have to carry criminal responsibility to cross the threshold for the defence of illegality.

More Clarity: *Lewis-Ranwell (Respondent) v G4S Health Services (UK) Ltd and others (Appellants)* [2026] UKSC 2

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On the facts

- ❖ *Gray*...involved criminal offences. By contrast the present case does not involve criminal offences in that the claimant was found not guilty by reason of insanity. That should not be a decisive consideration however.
- ❖ We do not accept that the lack of any criminal responsibility in this case is a good reason for distinguishing...*Gray*...
- ❖ We therefore conclude that the claimant's killing of the three men is unlawful conduct for the purpose of engaging the illegality defence.

Applying *Patel*

- ❖ in cases such as the present the application of the *Patel* criteria leads inevitably in our view to the conclusion that the illegality defence applies.
- ❖ ...the decision in *Gray* was based on policy considerations and was apparently approved in *Patel*. If one were to analyse the heads of claim in the present case in terms of the narrower or wider rules identified by Lord Hoffmann in *Gray*, every head of claim would fail under one or other or both of those rules.
- ❖ We also consider that the conclusion to which we have come on the application of the *Patel* approach is entirely consistent with the decision and reasoning in *Henderson* which was itself decided on this basis.

Complete Defence - Volenti

- Voluntary assumption of risk
- We are looking for 2 elements:
 - the C knew of the risk of injury; and
 - the C voluntarily agreed to incur this risk.

Agreement/Consent?

***Nettleship v Weston* [1971] 2 Q.B. 691, 701** per Lord Denning MR

‘Knowledge of the risk of injury is not enough. Nor is a willingness to take the risk of injury. Nothing will suffice short of an agreement to waive any claim for negligence. The [claimant] must agree, expressly or impliedly, to waive any claim for any injury that may befall him due to the lack of reasonable care by the defendant’.

Levels of Consent?

Dann v Hamilton [1939] 1 K.B. 509

- C was a passenger in D's car
- D had been drinking
- Another passenger said to C "You..have more pluck than I have."
- C answered "You should be like me. If anything is going to happen, it will happen."
Jokingly?
- Car crashed due to D's negligence
- *'There may be cases in which the drunkenness of the driver at the material time is so extreme and so glaring that to accept a lift from him is like engaging in an intrinsically and obviously dangerous occupation, intermeddling with an unexploded bomb or walking on the edge of an unfenced cliff. It is not necessary to decide whether in such a case the maxim "volenti non fit injuria" would apply, for in the present case I find as a fact that the driver's degree of intoxication fell short of this degree. I therefore conclude*

S 149, Road Traffic Act 1988

(1) This section applies where a person uses a motor vehicle in circumstances such that under section 143 of this Act there is required to be in force in relation to his use of it such a policy of insurance...

(2) If any other person is carried in or upon the vehicle while the user is so using it, any antecedent agreement or understanding between them (whether intended to be legally binding or not) shall be of no effect so far as it purports or might be held—

(a) to negative or restrict any such liability of the user in respect of persons carried in or upon the vehicle as is required by section 145 of this Act to be covered by a policy of insurance, or

(b) to impose any conditions with respect to the enforcement of any such liability of the user.

(3) The fact that a person so carried has willingly accepted as his the risk of negligence on the part of the user shall not be treated as negating any such liability of the user.

Other modes of transport?

Morris v Murray [1991] 2 Q.B. 6

- C admitted to drinking heavily with D
- D was a pilot and suggested a flight
- C helped to start the propeller and fuelled the plane
- *'If the [C] had himself been sober on the afternoon of the flight it seems to me that, by agreeing to be flown by [D], he must be taken to have accepted fully the risk of serious injury. The danger was both obvious and great. He could not possibly have supposed that [D] who had been drinking all the afternoon, was capable of discharging a normal duty of care. But as he himself had been drinking, can it be assumed that he was capable of appreciating the risks?...I think he knew what he was doing and was capable of appreciating the risks. I do not overlook that the [C]'s evidence was that, if he had been sober, he would not have gone on the flight. That is no doubt so but it does not establish that he was in fact incapable of understanding what he was doing that afternoon. If he was capable of understanding what he was doing, then the fact is that he knowingly and willingly embarked on a flight with a drunken pilot'* per Fox J at 16

Partial Defence? - Contributory Negligence

Law Reform (Contributory Negligence) Act 1945

S 1. Apportionment of liability in case of contributory negligence.

(1) Where any person suffers damage as the result partly of his own fault and partly of the fault of any other person or persons, a claim in respect of that damage shall not be defeated by reason of the fault of the person suffering the damage, but the damages recoverable in respect thereof shall be reduced to such extent as the court thinks just and equitable having regard to **the claimant's share in the responsibility** for the damage...

(2) Where damages are recoverable by any person by virtue of the foregoing subsection subject to such reduction as is therein mentioned, the court shall find and record the total damages which

S 4. Interpretation

- damage” includes loss of life and personal injury;
- “fault” means negligence, breach of statutory duty or other act or omission which gives rise to a liability in tort or would, apart from this Act, give rise to the defence of contributory negligence.

Questions to Ask

1. Has the Claimant exercised reasonable care?

- *Jones v Livox Quarries Ltd* [1952] 2 QB 608, 615 per Lord Denning: 'A person is guilty of contributory negligence if he ought reasonably to have foreseen that, if he did not act as a reasonable, prudent man, he might hurt himself; and in his reckonings, he must take into account the possibility of others being careless.'

2. Did the Claimant's actions contribute to the damage the Claimant suffered?

- *Gough v Thorne* [1966] 1 WLR 1387

3. By what extent should the Claimant's damages be reduced?

- *Lertora v Finzi* [1973] RTR 161
- *Jones* [1952]
- *St George v Home Office* [2008] EWCA Civ 1068

- a) Relative blameworthiness of the parties
- b) Causal potency of the parties respective acts

- *Stanley v Gurney Mines Ltd* [1952] AC

How does a finding of CN work?



1. Judge identifies the degree to which each party is responsible for the Claimant's loss expressed as a percentage
2. The percentages always add up to 100%
3. Claimant's damages are then reduced by the percentage allocated to him/her.

For example: If the Claimant and Defendant are responsible for the Claimant's loss 40/60, then the Claimant's damages will be reduced by 40%.

Defence (Partial?)/Action on Liability/Mitigation

Smith v Finch [2009] EWCH 53

- C (cyclist) claims against D (biker)
- And D claims against C
- C suffered serious head injuries (no helmet)
- D suffered a broken arm
- Court said on balance D entirely at fault for accident
- Should C's damages be reduced for contributory negligence?
- **Highway Code, Rule 59**: 'You should wear a cycle helmet that conforms to current regulations, is the correct size and securely fastened. Evidence suggests that a correctly fitted helmet will reduce your risk of sustaining a head injury in certain circumstances.' **NOT LAW!**
- Medical evidence – wearing of a helmet would have made no difference to C's injuries
- C was **not** contributory negligent



Defence (Partial?)/Action on Liability/Mitigation

Froom v Butcher [1976] QB 286

- C and D two drivers involved in an RTA
- D liable in negligence
- C suffered numerous injuries including head and chest injuries
- C was not wearing his seatbelt
- D alleged contributory negligence
- Head and chest injuries were attributable to failure to wear a seatbelt
- C contributory negligent for **those injuries** at 20%
- Generally:
 - Wearing of seatbelt would prevent the injury – 25% CN
 - Wearing of a seatbelt would reduce severity of injury – 15% CN



Intoxication

n

Campbell v Advantage Insurance Company Ltd [2021] EWCA Civ 1698

Car accident

- C (passenger) and D (driver) intoxicated
- C not wearing seatbelt (made no difference to the outcome)
- C sustained traumatic brain injury and D was killed
- Was C at fault for getting into a car with D who they knew was intoxicated?
- Could the C's own intoxication avoid a finding of contributory negligence?
- Reasonable man test applied to contributory negligence
- C was 20% contributory negligent

Self-Harm

Reeves v Commissioner of Police of the Metropolis [2000] 1 AC 360

- Suicide in police custody
- Duty of care
- 50/50 liability split

Corr v IBC Vehicles Ltd [2008] 1 AC 884

- PTSD following accident at work
- A question of causation and foreseeability
- No contributory negligence

N.B. *Alliance & Leicester Building Society v Edgestop Ltd [1993] 1 WLR 1462* – CN does **not** apply to intentional torts

Examples to Consider

Assuming all elements of negligence are met, can D raise a defence? If so, on what basis?

- C, driving carefully, collides with D's speeding car. D was executing an overtake at the time of the collision and was on C's side of the road. C suffers head and neck injuries as a result of the collision. C was not wearing a seatbelt.
- C and D stole some tall ladders from a front garden. The ladders did not fit onto their van so C stood on the back of the van holding the ladders in place with one hand and holding onto the van with the other. D drove round a corner sharply and C fell off the van and was injured.
- C spent the afternoon drinking with D. D suggested they take a joyride in his light aircraft. C helped D to prepare the plane. D was the pilot. Shortly after takeoff the aircraft crashed. D was killed and C was seriously injured.



Revision

Defence: Ex turpi causa non oritur action

- i. The defence of illegality must be pleaded and proved by the D on the balance of probabilities...
- ii. Illegality is concerned with illegal conduct and is of potential application in cases involving criminal acts and quasi-criminal acts featuring corruption or dishonesty...
- iii. If the C has a complete defence to criminal liability, the illegality defence is unlikely to apply...

- iv. The offending must be contemporaneous: if the C withdraws from a criminal enterprise before suffering damage, the defence will be inapplicable...
- v. The C's offending must be related causally to her damage...
- vi. Not every breach of the criminal law or quasi-criminal law and not every act of gross immorality is sufficient to trigger the defence.

Christian Witting *Street on Torts* (16th edn OUP 2021), 215-16



Revision

Defence: Volenti non fit injuria

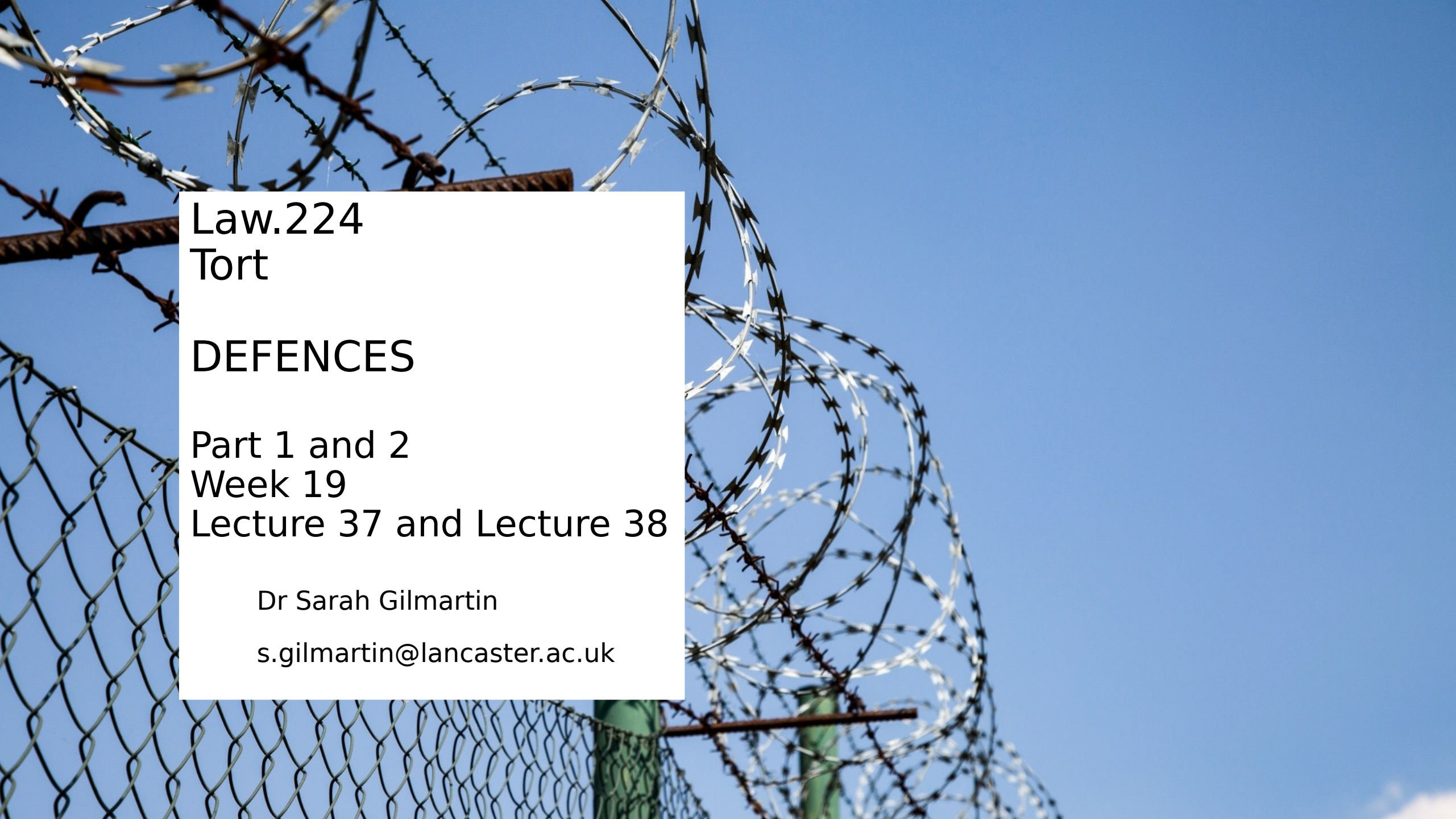
- C knew of the risk of injury; and
- C voluntarily agreed to take that risk.

Defence: Contributory Negligence

- Has C exercised reasonable care?
- Did C's actions contribute to the damage C suffered?
- By what extent should C's damages be reduced?
 - Relative fault of parties
 - Causal potency of parties respective acts

Additional Reading

- E Lim, 'Ex Turpi Causa: Reformation not Revolution' (2017) 80(5) Modern Law Review 927-941
- JC Fisher, 'The ex turpi causa principle in Hounga and Servier' (2015) 78(5) Modern Law Review 854-870
- J Gardner, 'Rethinking risk-taking: the death of volenti?' (2023) Cambridge Law Journal 1-28
- J Goudkamp and D Nolan, 'Contributory Negligence in the Twenty-First Century: An Empirical Study of First Instance Decisions' (2016) 79(4) Modern Law Review 575-62
- J Dietrich and I Field, 'The "reasonable tort victim": Contributory negligence, standard of care and the "equivalence theory"' (2018) 41(2) Melbourne University Law Review 602-646



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